

**IN THE DISTRICT COURT OF APPEAL
FIRST DISTRICT, STATE OF FLORIDA**

MARC M. MOSZKOWSKI,

Appellant,

CASE NO.: 1D2025-2912

vs.

**DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.,**

Appellees.

**APPELLANT'S MOTION FOR REHEARING AND FOR ISSUANCE OF A
WRITTEN OPINION**

Appellant Marc M. Moszkowski, appearing pro se, respectfully moves pursuant to Florida Rule of Appellate Procedure 9.330 for rehearing of the Court's September 14, 2026 decision and, alternatively, for issuance of a written opinion.

Appellant acknowledges the citation deficiencies identified by the Court in the Initial Brief and does not seek rehearing of the Court's admonition concerning those citations. Those authorities were not repeated in Appellant's subsequent Reply Brief, and this motion relies only upon authorities individually verified before filing. This motion is limited to points

of law previously presented in the appellate briefing that Appellant respectfully submits may have been overlooked or misapprehended.

**I. THE CIVIL-THEFT JUDGMENT PRESENTS A DISPOSITIVE
STATUTE-OF-LIMITATIONS ISSUE THAT DOES NOT DEPEND UPON
UNTRANSCRIBED TRIAL TESTIMONY**

Appellant's Initial Brief expressly argued that the civil-theft claim was barred by the five-year limitations period prescribed by section 772.17, Florida Statutes. The argument relied upon *Davis v. Monahan*, 832 So. 2d 708, 709–10 (Fla. 2002), for the proposition that delayed discovery does not postpone accrual of a civil-theft claim.

The Initial Brief presented the issue as follows:

“Civil-theft claims accrue when the alleged wrongful taking is complete, not when it is later discovered. § 772.17, Fla. Stat.; *Davis v. Monahan*, 832 So. 2d 708, 709–10 (Fla. 2002).”

The Brief further argued that the payments underlying the civil-theft claim had been made no later than 2011 and that, consequently, “the taking, if any, was complete and accrual occurred as a matter of law.” The action was filed in April 2018.

This was not an issue raised for the first time on appeal. The statute of limitations had been asserted as an affirmative defense, and the Initial Brief specifically challenged the Final Judgment's failure to make any finding concerning accrual or otherwise resolve that defense.

Nor was the legal significance of the 2011 accrual date speculative. Earlier in this same litigation, the United States District Court had considered the same civil-theft and conversion claims and the same delayed-discovery contention. In its January 27, 2020 Order on Motions for Summary Judgment, the federal court (U.S. District Court, Northern District of Florida, Case No. 3:18-cv-01466-TKW-MJF) determined:

“These claims accrued in 2012, at the latest, when Toke completed the allegedly misappropriated projects....”

The court then expressly considered Plaintiffs' contention that factual disputes existed concerning when DeepGulf discovered the alleged misappropriation and rejected that contention under *Davis*:

“[U]nder Florida law, the delayed discovery rule does not apply to claims for civil theft and conversion. See *Davis v. Monahan*, 832 So. 2d 708 (Fla. 2002).”

The federal court accordingly held the civil-theft and conversion claims time-barred.

Appellant does not invoke that prior determination here as a substitute for the appellate issue presented to this Court, nor does this motion ask the Court to determine the preclusive effect of the federal ruling. Rather, it confirms that the accrual question presented in the Initial Brief concerned an established legal rule applied to the same alleged conduct: completion of the alleged taking, rather than its later discovery, determines accrual.

The Final Judgment under review contains no finding establishing an accrual date within the five-year period preceding commencement of the action. It does not address section 772.17, does not apply *Davis*, and does not explain how the civil-theft claim remained timely notwithstanding the completed payments upon which the claim was based.

Appellees' Answer Brief principally contended that the absence of a trial transcript prevented review of factual findings. But the limitations issue presented by Appellant was not whether untranscribed testimony should be reweighed. It was whether the civil-theft judgment could stand where the alleged taking had been completed outside the statutory period and the

Final Judgment contained no finding establishing an accrual date within the five-year period preceding commencement of the action.

The Court's September 14, 2026 decision does not address that issue.

Appellant therefore respectfully requests rehearing on the limited question whether the civil-theft judgment may be affirmed consistently with section 772.17 and *Davis v. Monahan*.

II. THE RELATED PROPERTY-OWNERSHIP ISSUE LIKEWISE PRESENTS A FACIAL LEGAL QUESTION

Appellant's Reply Brief narrowed a second issue in response to Appellees' contention that the absence of a transcript foreclosed review. Appellant expressly stated that he was not asking this Court to reweigh testimony, but instead challenged “the legal sufficiency of the written Final Judgment itself—whether its articulated findings, on their face, establish the required elements of the claims.”

The civil-theft judgment awards liability for \$345,000 arising from distributions made by Toke. Yet the Final Judgment does not identify the legal basis upon which those funds constituted property of DeepGulf at the time they were distributed.

That omission is particularly material in light of the chronology underlying the judgment. The federal court previously found that the \$345,000 consisted of shareholder distributions from Toke and that DeepGulf “did not receive any shareholder distributions because it was not a shareholder of Toke.” The federal court further found that DeepGulf acquired a controlling interest in Toke by December 13, 2012, at the latest.

Thus, the two issues are closely related. The challenged \$345,000 payments were completed during the period relevant to the limitations analysis, while the question remains how those Toke shareholder distributions constituted DeepGulf property at the time of the alleged taking.

The Reply Brief specifically identified this temporal defect. It argued that the Final Judgment did not identify an assignment, agency relationship, trust, contractual entitlement, or other legal mechanism by which a later ownership interest in Toke vested DeepGulf with ownership of distributions made previously.

Again, this question did not ask the Court to reweigh testimony. It asks whether the findings actually articulated in the Final Judgment establish the property interest necessary to support the civil-theft liability imposed.

Appellant respectfully submits that this independently preserved legal issue likewise warrants rehearing.

III. ALTERNATIVELY, A WRITTEN OPINION IS WARRANTED

The Court's September 14 decision affirms the Final Judgment and separately addresses citation deficiencies contained in Appellant's Initial Brief. Appellant acknowledges those deficiencies and does not challenge the Court's admonition.

The decision, however, does not state the legal basis upon which the civil-theft judgment survives the statute-of-limitations issue presented under section 772.17 and *Davis*, nor does it address the related question whether the Final Judgment articulates a property interest belonging to DeepGulf at the time of the alleged taking.

A written opinion would clarify whether the Court regards resolution of either issue as dependent upon evidence presented at trial and therefore requiring a transcript, or whether some other legal basis supports affirmance notwithstanding the limitations chronology and the findings contained in the Final Judgment.

A written opinion would also provide a legitimate basis for seeking review by the Supreme Court of Florida by identifying the legal basis for the Court's disposition of these preserved questions of law. See Fla. R. App. P. 9.330(a)(2)(D)(i).

Appellant did not ask the Court to reweigh testimony as to either issue. The limitations argument was directed to the chronology of the alleged taking and the five-year limitation prescribed by section 772.17. The property-interest argument was directed to whether the findings actually articulated in the Final Judgment establish that the \$345,000 constituted property of DeepGulf at the time of the alleged taking.

Appellant therefore respectfully requests, alternatively, issuance of a written opinion identifying the legal basis upon which the civil-theft judgment is affirmed as to those issues.

CONCLUSION

For the foregoing reasons, Appellant respectfully requests that the Court:

1. Grant rehearing as to the civil-theft judgment and reconsider whether that judgment may be sustained under section 772.17, Florida Statutes, and *Davis v. Monahan*, 832 So. 2d 708 (Fla. 2002);

2. Reconsider whether the findings articulated in the Final Judgment establish that the \$345,000 constituted property of DeepGulf at the time of the alleged taking; or
3. Alternatively, issue a written opinion identifying the legal basis for affirmance of the civil-theft judgment as to those issues.

Respectfully submitted this 26th day of September, 2026.

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CERTIFICATE OF SERVICE

I hereby certify that, on this 26th day of September 2026, a true and correct copy of the foregoing was served on all counsel of record via the Florida Courts E-Filing Portal.

